

Stereo. H C J D A 38.

**JUDGMENT SHEET
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT**

Crl. Appeal No.15995 of 2020
(Muhammad Shahbaz alias Honey versus The State, etc.)

Crl. Rev. No.16254 of 2020
(Hamza Irshad versus Muhammad Shahbaz alias Honey, etc.)

JUDGMENT

Date of hearing: 12.03.2025.

Appellant by: Rai Usman Ahmad, Advocate.

State by: Ms. Maida Sobia, Deputy Prosecutor General.

Complainant by: Mr. Muhammad Abid Hussain Saqi, Advocate.

AALIA NEELUM, CHIEF JUSTICE:- Muhammad Shahbaz alias Honey son of Muhammad Tariq Javed, Caste Jutt, resident of House No.2, Bazar-4, Guroo Arjan Nagar Gowalmandi, District Lahore (presently resident of Arif Chowk Tokawali Gali Iqbal Town, Police Station Millat Park, Lahore), the appellant was involved in case FIR. No.526-2017, dated 16.09.2017, registered under Sections 302, 34, 109 P.P.C, at the police station, Gowalmandi, District Lahore, and was tried by the learned Additional Sessions Judge (M.C.T.C), Lahore. The learned trial court seized the matter in terms of the judgment dated 28.02.2020 and convicted the appellant under section 302(B) PPC and sentenced him to undergo **imprisonment for life** as Tazir with the direction to pay Rs.5,00,000/-as compensation to the legal heirs of the deceased. The compensation amount would be recovered as arrears of land revenue, and in case of default in payment, the appellant would undergo six months S.I. The benefit of section 382-B Cr.P.C. was also extended in favor of the appellant.

2. Feeling aggrieved by the trial court's judgment, Muhammad Shahbaz alias Honey, the appellant, has assailed his conviction by filing **Crl.**

Appeal No.15995 of 2020, the complainant being dissatisfied with the impugned judgment dated 28.02.2020, filed Criminal Revision No.16254 of 2020 for enhancement of the sentence of respondent No.1. As both the matters are arising out of the same judgment, they are being disposed of through a single judgment.

3. The prosecution story, as alleged in the F.I.R (Ex. PB) lodged on the complaint (Ex. PA) of Hamza Irshad (PW-1)-the complainant, is that on 16.09.2017, at about 12:45 p.m., the complainant (PW-1) was in the company of his maternal uncle, Mehmood Ali (since dead) and Mehmood Ali (since dead) along with his friends, Ghulam Murtaza (PW-2) and Ali Raza (PW-3) was sitting near the shop of Rana Iftikhar and Mahmood Ali (since dead) was preparing for “Zohar” prayer. Meanwhile, the accused, Muhammad Shahbaz alias Honey, and his co-accused, Sultan alias Jajja, equipped with their respective pistols, came by a motorcycle bearing registration No. LER-39 and raised lalkara that they would not spare Mehmood Ali (since dead), whereupon the accused, Muhammad Shahbaz alias Honey, made fire shots, which hit the chest and abdomen of Mehmood Ali (since dead). The co-accused, Sultan alias Jajja, also fired shots, which landed on the left shoulder, back, and other body parts of Mehmood Ali (since dead), who fell, whereas both the accused persons decamped from the place of occurrence while extending threats and firing. The complainant (PW-1) along with Ghulam Murtaza (PW-2) and other people of vicinity, shifted Mehmood Ali (since dead) to the hospital in injured condition, who succumbed to the injuries. The alleged occurrence was witnessed by Ghulam Murtaza (PW-2) and Ali Raza Gujjar (PW-3).

4. The motive behind the occurrence was a property dispute between Mehmood Ali (since dead) and the accused persons, and the occurrence was committed on the instigation of Irfan alias Iffi Jutt, who wanted to get possession over the property of Mehmood Ali (since dead). Hence, this case.

5. After registration of FIR, Aurangzeb, S.I. (PW-15), carried out the investigation, submitted a report under Section 173 of Cr.P.C., and sent the same to the court of competent jurisdiction while placing the name of the accused persons in Column No.3 of the challan. On 17.09.2018, the trial court formally charge-sheeted the appellant, to which he pleaded not guilty and claimed trial. In support of its version, the prosecution produced as many as fifteen (15) witnesses.

6. After the closure of prosecution evidence, the appellant was examined under Section 342 of Cr.P.C., wherein he refused to appear as his own witness in terms of Section 340 (2) Cr.P.C. However, in his defence, the appellant produced a copy of F.I.R. No.243/2012, offence under Section 342 P.P.C. In response to a particular question of why this case was against him and why the PWs deposed against him, the appellant made the following deposition: -

“A false case has been concocted against me due to the malafide intention of the complainant party, as the complainant party is inimical towards me that’s why I have been falsely involved in this case. Due to this reason, prosecution has bitterly failed to prove the charge against me. All the witnesses produced by the prosecution are chance witnesses and they could not establish their presence at the time of occurrence. Moreover, there are number of contradictions in the statements of witnesses inter-se and the prosecution case is full of doubts and even the prosecution has maneuvered this false case against me and it is established during the evidence that there is gross conflict between ocular and medical, there are contradictions in the statements of the witnesses, the prosecution case is not corroborated with any independent piece of evidence and whole prosecution case full with doubts. Even the motive set up by the prosecution is not directly concerned with me as I was not in conflict with the deceased with regard to the dispute over the property. I have also been involved in this case due to the reason that I had registered a case/FIR No.243/12 u/s 324 PPC registered with police station, Gawalmandi and in the said case Mehmood Ali remained jail for 3 and

half/04-years. Due to this grudge in the mind of the complainant party, I have been falsely involved in this case. Moreover, it was in the mind of the complainant party that I was pursuing the different matters of Sultan, co-accused (since P.O), who was the relative of the complainant party that's why I have been falsely involved in this case. Basically, the occurrence was committed by unknown persons due to the reason that deceased had enmity with number of persons and the inhabitants/natives of the locality were not supporting the version of the complainant that's why no person from locality was produced before the I.O and even before the court. I have been maliciously involved in this case."

7. After recording evidence and evaluating the evidence available on record in light of the arguments advanced by both sides, the trial court found the prosecution version proved beyond any shadow of reasonable doubt, which resulted in the appellant's conviction in the afore-stated terms.

8. I have heard the arguments advanced by the learned counsel for the parties and have minutely perused the record on the file.

9. As per the prosecution's case, the occurrence had taken place on 16.07.2017 at 12:45 p.m. near the shop of Rana Iftikhar alias Bao situated in Gowalmandi Lahore, falling within the territorial jurisdiction of the police station Gowalmandi, Lahore, which is at a distance of 1/2 kilometer only from the place of occurrence. After the occurrence, Hamza Irshad (PW-1)-the complainant alongwith his brother and people of the locality shifted Mehmood Ali (then injured), the maternal uncle of Hamza Irshad (PW-1)-the complainant, to Mayo Hospital boarding him on rickshaw and got admitted him in Mayo Hospital for saving his life, where medical treatment was provided to Mehmood Ali, who succumbed to the injuries in the hospital. Hamza Irshad (PW-1)-complainant mentioned in oral statement (Ex. PA) that his maternal uncle Mehmood Ali was injured in the firing and fell on the ground drenched in blood. The accused fled on a motorcycle while threatening and firing and took his uncle's licensed pistol. According to Hamza Irshad (PW-1), the complainant, he, along with his brother (not

named) and other residents of the neighborhood, had put his uncle in a rickshaw and admitted him to Mayo Hospital, where he (PW-1) was busy treating his uncle Mahmood Ali, who succumbed to the injuries in the hospital. Hamza Irshad (PW-1)-the complainant reported the incident to Syed Waqar Ali S.I. (PW-6) through oral statement (Ex.PA) at 03:10 p.m. in Emergency Ward of Mayo Hospital, who sent the same to police station through Maqbool Ahmad/C (not cited as witness) for formal registration of FIR and formal FIR (Ex. PB) was chalked out at 03:25 p.m. on 16.07.2017 by Muhammad Ijaz S.I. (PW-5). Notably, the death certificate of Mayo Hospital, Lahore (Ex.PG) reveals that Mehmood Ali, then injured, was admitted in the Emergency Ward at 01:12 p.m. He took his last breath at 02:45 p.m., and the matter was reported to the police at 03:10 p.m. It is the case of the prosecution that Mehmood Ali was shifted to Mayo Hospital, Lahore, by Hamza Irshad (PW-1), the complainant, his brother (not named in the oral statement (Ex.PA) and FIR (Ex. PB)), and the people of the locality. Whereas, on perusal of MLC (Ex.PK), it reveals that Mehmood Ali (then injured) was accompanied by Irshad Ali (brother-in-law) of Mehmood Ali (then injured). Hamza Irshad (PW-1)-the complainant deposed during his examination-in-chief that: -

“Me, my brother and Ghulam Murtaza alongwith people of the locality shifted my uncle Mahmood Ali to hospital but my uncle Mahmood Ali succumbed to the injuries despite receiving treatment.”

Contrary to the deposition of Hamza Irshad (PW-1), the complainant, Ghulam Murtaza (PW-2), the eye witness, deposed during his examination in chief that: -

“Hamza Irshad, his brother Noman Irshad and people of the neighbourhood shifted the injured on rickshaw to Mayo hospital. Ali Raza and I also went with them on our motorcycle. Injured Mahmood was shifted to operation theater and we remained outside the theater and came to know at about 03:00 pm that Mahmood has passed away. After sometime, Investigating

Officer came there and recorded our statement.”

While Ali Raza (PW-3) deposed during his examination-in-chief that: -

“Hamza Irshad, Ghulam Murtaza, Noman Irshad and I shifted the deceased to the hospital on rickshaw who died in the hospital at 03:00 pm.”

The defence has also brought on the record improvements in the statements made by Hamza Irshad (PW-1), the complainant, Ghulam Murtaza (PW-2), and Ali Raza (PW-3), the eye witnesses in their statements recorded before the police under Section 161 of Cr.P.C. Hamza Irshad (PW-1)-the complainant deposed during cross-examination that: -

“I got mentioned in my complaint Ex.PA that I alongwith Ghulam Murtaza and other people of locality shifted the dead body of deceased to the hospital. Confronted with Ex.PA, where the name of Ghulam Murtaza is not mentioned.”

Ghulam Murtaza (PW-2)-the eye witness deposed during cross-examination that: -

“I got recorded in my statement u/s 161 Cr.P.C. that I alongwith Ali Raza proceeded to Hospital on motorbike. Confronted with Ex.DA wherein it is not recorded. I got recorded in my statement that deceased Mahmood Ali was taken to Operation Theater of Mayo Hospital and we kept on standing outside Operation Theater. Confronted with Ex.DA where it is not recorded. I got mentioned in my statement u/s 161 Cr.P.C., that death of deceased Mahmood Ali came into my knowledge at 03:00 pm. Confronted with Ex.DA wherein it is not recorded.”

Ali Raza (PW-3)-the eye witness deposed during cross-examination that: -

“I got recorded in my statement before police that I alongwith Hamza Irshad, Ghulam Murtaza, Noman Irshad shifted the deceased to hospital in rickshaw. Confronted with Ex.DB, where it is not so recorded. I got recorded in my statement before the police that deceased

Mahmood Ali died at 03:00 pm in the hospital. Confronted with Ex.DB, where it is not so recorded. I got recorded in my statement before the police that accused persons while threatening us left the place of occurrence. Confronted with Ex.DB, where words “threatening us” are not so recorded but only word “threatening” has been mentioned.”

It is the prosecution's case that after shifting Mahmood Ali in injured condition to Mayo Hospital, medical treatment was provided to the injured, who succumbed to injuries. The incident was reported to the police upon arrival. From the testimony of Hamza Irshad (PW-1)-the complainant, it reveals that before recording statement of the witness, Syed Waqar Ali Shah S.I. (PW-6), examined the body of Mahmood Ali, the deceased, examined the injuries received by the deceased and then recorded the statement of Hamza Irshad (PW-1)-the complainant. Hamza Irshad (PW-1)-the complainant deposed during cross-examination that: -

“My brother Noman brought rickshaw at place of occurrence within 05-minutes from time of occurrence. It is correct that rickshaw driver has not been produced during investigation. It is further correct that said rickshaw was also not produced during the investigation. Noman has not been cited as a witness of the occurrence. Only four persons from the locality went to the hospital. Those four persons have not been made witnesses of the present occurrence. Volunteered that they were not present at the time of occurrence. Shop of Rana Iftikhar is at two km distance from Mayo Hospital. ----- On way to hospital from shop of Rana Iftikhar, police station falls, however, we took other passage. It is incorrect to suggest that I have made dishonest improvement with regard to usage of other passage. Police check-post exists within the Mayo Hospital boundary. Officials from said police check-post approached us after some time. Syed Waqar Ali Shah SI approached us. Syed Waqar Ali Shah SI examined the injuries received by Mahmood Ali. Police officials from police check-post reached to us after 30-minutes

of our arrival whereas Syed Waqar Ali Shah SI came from police station. ----- Statement of my father was recorded by Syed Waqar Ali Shah SI. Statement of my father was recorded earlier to my statement. It is not in my knowledge that how much prior to my statement, statement of my father was recorded. When my statement was recorded by Syed Waqar Ali Shah SI, only two police officials were present over there. Syed Waqar Ali Shah SI examined the whole body of the deceased before recording my statement. It is not in my knowledge that apart from the statement of my father, whether any police official recorded or not any other statement of any other person in this case. Syed Waqar Ali Shah SI stayed at hospital for about 30-minutes. ----- I was not present when Syed Waqar Ali Shah SI examined the dead body of deceased Mahmood Ali. ----- My brother Noman reached at place of occurrence after 5-minutes to the time of occurrence whereas my father Irshad Mahmood directly reached to Mayo Hospital from Mian Munshi Hospital at about 01:20 pm."

Ghulam Murtaza (PW-2)-the eye witness deposed during cross-examination that: -

"Nouman (brother of complainant Hamza) brought rickshaw. Again said that rickshaw was passing through the street and came over within no time. We reached to the Hospital at about 01:00 pm. Police reached at Hospital at about 03:00 pm. No police official reached at the Hospital before 03:00 pm. Police officials asked about the occurrence from complainant Hamza."

It is an admitted fact that before recording the statement of the complainant, the partial investigation was conducted by Syed Waqar Ali, S.I. (PW-6). Syed Waqar Ali, S.I (PW-6) deposed during examination in chief that: -

"Stated that on 16.09.2017, I was posted at P.S Gawal Mandi, Lahore as Chauki Incharge, Mayo Hospital Lahore. I was present in the said police posts when Constable Imran informed

me that a person has suffered a firearm injury and his dead body is shifted to the emergency ward of Mayo Hospital. I went to the emergency ward where complainant Hamza met me and got his statement recorded, which I wrote down.

During cross-examination, Syed Waqar Ali, S.I (PW-6) deposed as under: -

“The Police Post at which I was posted is situated within premises of the Mayo Hospital, Lahore. I received the information regarding shifting of the dead body in emergency ward of the Mayo Hospital, Lahore at about 01:00 pm.”

Whereas Dr. Marriam Shahid (PW-10) deposed during examination-in-chief that on 16.09.2017, patient Mahmood Ali was brought by Irshad Ali (brother-in-law) to emergency department at about 01:12 pm, and she conducted MLC at about 01:15 pm on book No.29. Aurangzaib S.I (PW-15)-the investigating officer deposed during cross-examination that: -

“I received information of the present occurrence at about 12:00 (noon) and I was present at that time in the area. I reached at hospital between 01:30 pm to 02:00 pm. -----
--- complainant Hamza Irshad got recorded his statement to Waqar Ali SI in my presence. Said Waqar Ali SI was posted at police station Gowalmandi at that time. I started investigation proceedings in this case at about 03:15 pm. It is correct that I prepared injury statement & inquest report and handed over the dead body to the constables for post-mortem before receiving the copy of FIR. FIR of this case was chalked out at 03:25 pm on 16.09.2017. -----
----- It is correct that in inquest report Ex.PS against column No.III, time of information of present occurrence is mentioned as 03:10 pm. --
----- it is correct that on 17.09.2017, given up PW Irshad got recorded his statement u/s 161 Cr.P.C. It is further correct that in his statement before me, he got recorded that at the time of present occurrence, he was present on his duty at Mian Munshi Hospital and after receiving information of instant occurrence, he

arrived at place of occurrence and shifted the injured Mahmood to hospital.”

The duration between the death of the deceased and the postmortem examination also contradicts the prosecution's case. Per the prosecution's version, the occurrence occurred at 12:45 p.m. on 16.07.2017. As per the prosecution's case, Mahmood Ali-deceased took his last breath at 2:45 p.m. on 16.09.2017 (as per the death certificate of Mayo Hospital, Lahore, Ex. PGG available at page No. 175 of the book), and the matter was reported to police at 03.00 p.m. on 16.07.2017. The dead body was shifted to the hospital for a postmortem examination. The postmortem examination was conducted at 11:45 a.m. on 17.09.2017, i.e., 21 hours after the occurrence, whereas the doctor who had conducted the postmortem examination opined that the duration between death and postmortem examination was 21 hours, which fact vitiates the prosecution case set forth by the ocular account, in this regard cases of **“MUHAMMAD RAFIQUE alias FEEQA. Vs. The STATE” (2019 SCMR 1068)** and **“SYFYAN NAWAZ and another. Vs. The STATE and others (2020 SCMR 192)**, can be referred.

10. There is another aspect of the case that makes the prosecution's case doubtful. In the inquest report (Ex. PS), which was prepared on 16-09-2017, Aurangzeb, S.I. (PW-15) investigating officer mentioned the names of the persons who identified the dead body of Mahmood Ali-deceased as Irshad Mahmood (given up PW) and Maqsood Ahmad (PW-14), brother-in-law and friend of Mahmood Ali-deceased. Their names have also been mentioned in the last column of the inquest report (Ex. PS). This out rightly suggests that Hamza Irshad (PW-1), the complainant Ghulam Murtaza (PW-2), and Ali Raza (PW-3), the eyewitness, were not present when the inquest report (Ex. PS) in this case was prepared. This fact further gets support from the deposition of Maqsood Ahmad (PW-14) during examination-in-chief that: -

“On 17.09.2017, I alongwith Irshad Mahmood identified the dead body of deceased Mahmood Ali at dead house of Mayo Hospital.”

Maqsood Ahmad (PW-14) also deposed during cross-examination that: -

**“I did not visit the hospital before 17.09.2017.
My statement was recorded by the I.O. at 04:00
pm at the hospital.”**

In addition, there are discrepancies in the witnesses' statements regarding their position at the time of the incident. Hamza Irshad (PW-1)-the complainant deposed during examination-in-chief that: -

**“Stated that on 16.09.2017, at 12:45 pm, my
maternal uncle Mahmood Ali, Ghulam Murtaza
and Ali Raza were sitting in the electrics shop
and my maternal uncle was preparing for
Zuhar prayer.”**

Ghulam Murtaza (PW-2)-the eye witness deposed during examination-in-chief that: -

**“Stated that on 16.09.2017, I went to see
Mahmood at about 11:30 am who was present
in an electronic shop. The owner of electronic
shop was also present when we reached there.
Ali Raza also accompanied me to the electronic
shop on a motorcycle. We placed the chairs
outside the shop and sat there. After a short
while, Hamza Irshad complainant also joined
us.”**

Ali Raza (PW-3)-the eye witness deposed during examination-in-chief that: -

**“Stated that on 16.09.2017, Ghulam Murtaza
Dogar and I went to see Mahmood Ali deceased
at his home who was sitting in an electronic
shop below his house. The owner of electronic
shop was also present. After short while,
nephew of Mahmood Ali deceased Hamza
Irshad also reached there. All of us sat outside
the shop.”**

At the time of occurrence, the positions stated by the witnesses conflicted. They were thus chance witnesses, as by coincidence or chance, they were present at the place of occurrence when the incident was taking place. They could not normally be where and when they profess to have been. Even, Aurangzeb, S.I (PW-15)-the investigating officer deposed during cross-examination that: -

“It is correct that the address of PWs Ghulam Murtaza, Ali Raza and complainant Hamza are not of the street where the occurrence took place. It is correct that the present occurrence was taken place in street No.2 Guru Arjan and no resident from said was recorded by me.”

Hamza Irshad (PW-1)-the complainant deposed during cross-examination that: -

“It is correct that PWs Ghulam Murtaza and Ali Raza are not residents of Gawalmandi.”

The prosecution witnesses have not deposed the reason for their presence at the place of occurrence. Admittedly, they were not residents of the locality where the incident occurred. So, they are chance witnesses. Ghulam Murtaza (PW-2)-the eye witness deposed during examination-in-chief that: -

“Distance between Sadoke village to Gowalmandi is about 44-kms. It consumes about one hour on some vehicle. Volunteered that in those days, I was living at property office. It is incorrect to suggest that my volunteer portion is incorrect. I did not get mentioned in my statement that in the days of present occurrence, I was residing at Sadoke. Confronted with Ex.DA, where it is so recorded.”

Ali Raza (PW-3)-the eye witness deposed during cross-examination that: -

“Mohallah Usmanpura Chaudharian Shalimar Town, Lahore is at about distance of 12/15-kms from place of occurrence of present occurrence. Volunteered that in the days of present occurrence, I was not residing at Mohallah Usmanpura. It is incorrect to suggest that my volunteer portion is incorrect. My CNIC has the same address as mentioned Mohallah Usmanpura Chaudharian Shalimar Town, Lahore. it is correct that my present as well as permanent residence is mentioned as Mohallah Usmanpura Chaudharian Shalimar Town, Lahore in my CNIC. My CNIC was issued in the year 2013 which would expire in the year 2023. I have no document with me right this

time showing any other residential address of mine instead of Mohalla Usmanpura Chaudharian Shalimar Town, Lahore.”

These facts indicated and gave a scent that Hamza Irshad (PW-1)-the complainant, Ghulam Murtaza (PW-2)-the eye witness and Ali Raza (PW-3)-the eye witness were not at all present at the scene. The testimonial assertions of the witnesses, i.e., Hamza Irshad (PW-1)-the complainant, Ghulam Murtaza (PW-2)-the eye witness, and Ali Raza (PW-3)-the eye witness, did not have the ring of truth. The reason they assigned (PW-1, PW-2, and PW-3) for their alleged presence at the spot was farfetched and fabricated. In addition, the depositions of the prosecution witnesses reveal that the deceased was a man of questionable character, having a shady past and criminal antecedent. Hamza Irshad (PW-1), the complainant, deposed during cross-examination that: -

“Ghulam Murtaza PW became the friend of deceased Mahmood Ali while they were in jail whereas Ali Raza was not jail friend rather he became friend outside the jail during some Court proceedings.”

Given the above, the evidence presented by the prosecution is insufficient to rely on the testimonies of the witnesses. The above-said depositions of the PWs create doubt about the prosecution's story.

11. So far as recovery of the weapon of offence, i.e., pistol 30-bore (P-6), five live bullets (P-7/1-5) and magazine (P-8), allegedly recovered on the disclosure of the accused/appellant and positive report of Punjab Forensic Science Agency (Ex. PDD), are concerned, this court has noticed with concern that the safe custody of the parcel of crime empties (P-1/1-5) alongwith two led bullets (P-2/1-2) , pistol 30-bore (P-6), five live bullets (P-7/1-5) and magazine (P-8) has not been proved from the prosecution evidence. As per the prosecution case, on 16.09.2017, Aurangzeb, S.I (PW-15)-the investigating officer secured five crime empties (P-1/1-5) alongwith two led bullets (P-2/1-2) from the place of occurrence and handed them over to Ansar Ali 11063/H.C (PW-4)-Moharrar Malkahana. On 21.09.2017,

Ansar Ali 11063/H.C (PW-4) Moharrar Malkhana handed over a parcel of crime empties to Aurangzeb, S.I (PW-15)-the investigating officer for its onward transmission to the office of Punjab Forensic Science Agency, Lahore. After that, the appellant was arrested on 21.11.2017, and during the investigation, he recovered a pistol, 30-bore (P-6), five live bullets (P-7/1-5), and a magazine (P-8) from his house on 03.12.2017. Aurangzeb, S.I. (PW-15)-the investigating officer deposed during his examination-in-chief that: -

“I made sealed parcel of the said recovered pistol 30-bore (P-6), five live bullets (P-7/1-5) and magazine (P-8) which I took into possession through recovery memo Ex.PJ attested by the witnesses. I recorded statements of PWs in this regard. I prepared rough site plan Ex.PBB of the place of recovery of pistol. I drafted complaint in this regard and forwarded the same to the police station for registration of FIR under the Arms Ordinance as a result whereof FIR No.826/17 was registered u/s 13(20)(65) with P.S. Bhatti Gate, Lahore. I handed over the said pistol alongwith live bullets to Moharrar of P.S. Bhatti Gate for safe custody in Mallkhana of the police station. Thereafter, I returned to police station and locked up accused Muhammad Shahbaz in the police lockup.”

Per the prosecution's case, the investigation officer handed over the recovered pistol, 30-bore (P-6), five live bullets (P-7/1-5), and a magazine (P-8) to the Moharrar of P.S. Bhatti Gate for safe custody. However, Moharrar Malkhana of police station Bhatti Gate has not been produced by the prosecution as witness, rather Ansar Ali 11063/H.C Moharrar of police station Gowalmandi while appearing as PW-4 deposed during his examination in chief that on 03.12.2017, I.O. handed over to him one sealed parcel said to contain a pistol and received back from him on 07.12.2017 for depositing the same in the office of Punjab Forensic Science Agency, Lahore, which is contrary to the deposition made by Aurangzeb, S.I. (PW-15)-the investigating officer. In addition, Aurangzeb, S.I. (PW-15)-the investigating officer, had not recorded a statement under section 161 of Cr.P.C of Ansar Ali 11063/HC (PW-4)-Moharrar regarding handing over a

parcel of the crime empties on 16.09.2017 and 03.12.2017 about handing over 30-bore (P-6), five live bullets (P-7/1-5), and a magazine (P-8). Ansar Ali 11063/HC (PW-4)-Moharrar deposed during cross-examination that: -

“I got recorded my statement only for once on 21.09.2017 I received sealed parcel between 08:00/09:00 pm on 16.09.2017.”

The prosecution failed to establish by cogent evidence that the alleged parcel of pistol 30-bore (P-6), five live bullets (P-7/1-5), and a magazine (P-8) recovered from the possession of the appellant was kept in safe custody. Practically, the prosecution took upon themselves the risk of losing the case. In the considered opinion of this Court, the aforesaid inconsistencies and contradictions considered cumulatively do lead to an irresistible inference that the prosecution has not been able to prove safe custody of the recovered pistol 30-bore (P-6), five live bullets (P-7/1-5) and magazine (P-8) through material and cogent evidence. In these circumstances, the recovery of the weapon of offence and a positive report is of no consequence.

12. This court found that the motive set up by the prosecution in the oral complaint (Ex.PA) and FIR (Ex. PB) remained unproven. Hamza Irshad (PW-1)-the complainant deposed during examination-in-chief that: -

“The motive behind this occurrence is that accused are closed relatives of my maternal uncle Mahmood Ali and they had a property dispute with each other.”

Hamza Irshad (PW-1)-the complainant deposed during cross-examination that: -

“I had never been party in any capacity to property dispute between accused Shahbaz and deceased Mahmood Ali. It is not in my knowledge whether any civil litigation is pending between accused Shahbaz and to that of deceased Mahmood Ali.”

Aurangzeb S.I. (PW-15)-investigating officer, deposed during cross-examination that: -

"It is correct that no civil litigation was pending between accused Shahbaz and to that of deceased Mahmood Ali. Volunteered that as per my investigation, accused Shahbaz used to pursue said litigation. It is incorrect to suggest that my volunteer portion is incorrect. Neither any such document with regard to pursuing the civil litigation by accused Shahbaz was produced before me nor I took the same into possession. No witness joined the investigation with claim that accused Shahbaz was pursuing civil litigation on behalf of Sultan (since P.O). It is incorrect to suggest that I have made a false statement with regard to motive part of the present occurrence."

In the circumstances, this court cannot avoid the conclusion that the motive, as alleged in the oral complaint (Ex.PA) and FIR (Ex. PB), was an afterthought and has not been proved by any credible evidence. In the instant case, enmity between the two parties, i.e., the deceased and accused, was not disputed before this Court. Now it is trite law that enmity is a double edge weapon. The existence of a civil dispute was not proved; instead, the complainant had reason for involving the appellant for committing the crime, yet the court has to be cognizant of the fact that this may, in a given case, lead to the false implication of the appellant. Hamza Irshad (PW-1), the complainant, deposed during cross-examination that: -

My deceased Mamu Mahmood Ali was lodged in jail in case/FIR No.243/12 u/s 324 PPC registered with P.S. Gowalmandi, Lahore. As per allegation in above said FIR, deceased of this case Mahmood Ali was assigned role of firing upon Shahbaz accused. ----- My deceased Mamu Mahmood Ali remained confined for about 3 ½ /4-years in the above said case. It is correct that my deceased Mamu Mahmood Ali was convicted after trial in above said case/FIR No.243/12."

There are always different motives operating in the mind of the person making a false accusation. The learned counsel for the complainant emphasized that after the occurrence, the appellant absconded. However, in the light of the statement of Aurangzeb S.I. (PW-15)-investigating officer, it could not be said that the appellant was declared a proclaimed offender. Aurangzeb S.I. (PW-15)-investigating officer deposed during examination-in-chief that: -

"On 13.11.2017, I obtained proclamations Ex.PX, Ex.PY & Ex.PZ of accused Shahbaz alias honey, Sultan alias Jajja and Irfan alias Iffi respectively from the court concerned and handed over the same to Nazakat Ali/C for execution. ----- On 21.11.2017, I formally arrested accused Muhammad Shahbaz in the instant case. I interrogated him and locked him in the lockup."

It is also an admitted fact that the Proclamation was issued under Sections 87 & 88 of Cr.P.C. Before the expiry of 30 days as required by law and without the recording of the statement of police officials, the petitioner-accused was arrested on 21.11.2017. However, the factum of remaining a fugitive from law for a considerable period, even if established, could only be used as corroborative evidence and was not substantive. It is an established principle of law that mere absconsion is not proof of guilt of an accused. Reliance is placed on "**Rasool Muhammad v. Asal Muhammad and another**" (PLJ 1995 SC 477). From the above, it can be ascertained that prosecution has badly failed to bring guilt of the appellant through straightforward, confidence-inspiring, and corroborative evidence, after concluding that the prosecution case lacks sufficient incriminating corroborating evidence, especially material contradiction in the ocular account and the medical evidence as well as material points. Under such circumstances, it cannot be said that the prosecution has proved the guilt of the accused-appellant beyond any reasonable doubt to warrant conviction. Needless to say, the benefit of the doubt always goes in favour of the accused. In addition, co-accused namely Muhammad Irfan alias Iffi of the

appellant has been acquitted by the learned trial court on the same set of evidence. Although, through Crl. Appeal No.16523/2020, acquittal of co-accused Muhammad Irfan alias Iffi was challenged, however, said appeal was dismissed due to non prosecution. The major part of evidence of the prosecution was disbelieved qua the above named accused. So no reliance could be placed on the testimony of the prosecution witnesses for conviction of the appellant.

13. As it is difficult to rely upon the testimonies of Hamza Irshad (PW-1)-the complainant, Ghulam Murtaza (PW-2)-the eye witness and Ali Raza (PW-3)-the eye witness, and for other reasons enumerated hereinbefore, I am persuaded to hold that the prosecution had not been able to prove its case against the appellant beyond any shadow of a doubt as there were many dents in the prosecution story. The conviction and sentence the learned trial court recorded could not be sustained. It is held in the case of **“Muhammad Akram v. The State” (2009 SCMR 230)** that: -

“The nutshell of the whole discussion is that the prosecution case is not free from doubt. It is an axiomatic principle of law that in case of doubt, the benefit thereof must accrue in favour of the accused as matter of right and not of grace. It was observed by this Court in the case of Tariq Pervez v. The State 1995 SCMR 1345 that for giving the benefit of doubt, it was not necessary that there should be many circumstances creating doubts. If there is circumstance which created reasonable doubt in a prudent mind about the guilt of the accused, then the accused would be entitled to the benefit of doubt not as a matter of grace and concession but as a matter of right.”

In the case of **MUHAMMAD ZAMAN versus The STATE and others (2014 SCMR 749)**, it is held as under: -

"Needless to say that even a single doubt if found reasonable, is enough to warrant acquittal of the accused. Above all else when initial presumption of innocent is strengthened on the acquittal of the

accused, we would not like to interfere there with simply because another view is equally possible."

14. In light of the above discussion, I affirm that the prosecution has failed to prove its case against the appellant beyond any shadow of a doubt. Therefore, I accept the instant Criminal Appeal No.15995 of 2020 filed by the appellant-Muhammad Shahbaz alias Honey, in toto. The conviction and sentence awarded by the learned Additional Sessions Judge, Lahore, vide judgment dated 28.02.2020, is **set aside**. The appellant-Muhammad Shahbaz alias Honey is **acquitted** of the charge in case FIR. No.526-2017, dated 16.09.2017, registered under Sections 302, 34, 109 P.P.C, at the police station, Gowalmandi, District Lahore. He (the appellant) is directed to be released forthwith if not required in any criminal case.

15. **Criminal Revision No.16254 of 2020**, filed by the complainant, Hamza Irshad, to enhance the sentence of respondent No.1 awarded by the trial court, is devoid of any legal force for reasons aforestated and accordingly **dismissed**.

(AALIA NEELUM)
CHIEF JUSTICE

Approved for reporting

Chief Justice

*This judgment was dictated,
pronounced on 12.03.2025, and signed
after completion on 17.03.2025.*

Ikram*